

**SUBSTITUTE FOR
HOUSE BILL NO. 4897**

A bill to amend 2016 PA 407, entitled
"Skilled trades regulation act,"
by amending section 939 (MCL 339.5939) and by adding sections 926,
926a, and 926b.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 926. (1) For purposes of this article, boiler installer**
2 **licenses are classified as follows:**

3 **(a) Class 2B.**

4 **(b) Class 3B.**

5 **(c) Class 4B.**

6 **(d) Class 5B.**

7 **(e) Class 6B.**

8 **(f) Class P.**



1 (2) Beginning on the effective date of the amendatory act that
2 added this section, an individual who has a class 1B license issued
3 by the department is considered to have a class 2B license under
4 this article.

5 Sec. 926a. (1) The director shall not issue a license for a
6 boiler installer described under section 926 unless the applicant
7 meets the requirements that are applicable to the classification of
8 license for which the applicant is seeking licensure, as prescribed
9 by rule.

10 (2) Subject to subsection (3), the department shall promulgate
11 rules to determine the requirements for each boiler installer
12 license classification described in section 926 under the
13 administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to
14 24.328.

15 (3) The department shall not issue a class 6B license to an
16 applicant unless the applicant submits evidence of both of the
17 following:

18 (a) Familiarity with and knowledge of federal rules and
19 regulations regarding the installation of boilers that utilize a
20 nuclear heat source.

21 (b) Employment by a company in possession of a valid ASME
22 nuclear code symbol applicable to the portions of any nuclear
23 boiler system the company proposes to install.

24 Sec. 926b. (1) An individual who is issued a class 2B license
25 under this article may install a low-pressure boiler of any
26 capacity or firing rate.

27 (2) An individual who is issued a class 3B license under this
28 article may do all of the following:

29 (a) Install a power boiler that has a capacity of not more



1 than 5,000 pounds of steam per hour.

2 (b) Install or replace non-boiler external piping.

3 (c) Perform work covered by a class 2B license.

4 (3) An individual who is issued a class 4B license under this
5 article may do all of the following:

6 (a) Install a boiler that has a capacity of not more than
7 300,000 pounds of steam per hour.

8 (b) Install or replace non-boiler external piping.

9 (c) Perform work covered by a class 3B license.

10 (4) An individual who is issued a class 5B license under this
11 article may do all of the following:

12 (a) Install a boiler of any capacity or firing rate, except
13 for a boiler that utilizes a nuclear heat source.

14 (b) Install or replace non-boiler external piping.

15 (c) Perform work covered by a class 4B license.

16 (5) An individual who is issued a class 6B license under this
17 article may do both of the following:

18 (a) Install a boiler that utilizes a nuclear heat source or
19 the parts, appurtenances, or system components of a boiler that
20 utilizes a nuclear heat source.

21 (b) Perform work covered by a class 5B license.

22 (6) An individual who is issued a class P license under this
23 article may install or replace non-boiler external piping.

24 (7) As used in this section, "non-boiler external piping"
25 means piping, valves, fittings, and appurtenances that are external
26 to a boiler and not part of the boiler proper or boiler external
27 piping, as further defined by the department by rule through
28 adoption of nationally recognized power-piping standards.

29 Sec. 939. A person shall not install or alter a boiler without



1 first obtaining a permit to install or alter the boiler from ~~the~~
2 ~~boiler division of~~ the department. All of the following apply for
3 purposes of the permit requirement under this section:

4 (a) A person is not eligible for a permit if the person is not
5 licensed under ~~this article.~~**section 926a.**

6 (b) An individual shall not perform work for which a permit is
7 required unless ~~he or she~~**the individual** is licensed under ~~this~~
8 ~~article,~~**section 926a,** or ~~he or she~~**the individual** performs the
9 work under the immediate supervision of an individual who is
10 licensed under ~~this article.~~**section 926a.**

11 (c) A person shall obtain a permit by submitting an
12 application to the department and including with the application a
13 permit fee in an amount established by the department under article
14 4. A permit fee is not required for a boiler that is exempt from
15 inspection under section 915.